

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Owen Godshall	Team: Squad #10	CCRB Case #: 201705367	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 07/01/2017 1:16 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/1/2019	Precinct: 47		
Date/Time CV Reported Sat, 07/01/2017 12:17 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 07/01/2017 12:17 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			047 PCT
2. POM Michael Gonzalez	24102	943312	047 PCT
3. LT Michael Kaiser	00000	941046	047 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Matthew Escudero	26192	948333	047 PCT
2. POM Bjondin Skender	29051	951269	047 PCT
3. SGT Ariana Esteban	4188	943213	047 PCT

Officer(s)	Allegation	Investigator Recommendation
A . LT Michael Kaiser	Abuse: Lieutenant Michael Kaiser entered § 87(2)(b) in the Bronx.	A . Exonerated
B . Officers	Abuse: Officers searched § 87(2)(b) in the Bronx.	B . Exonerated
C . POM Michael Gonzalez	Abuse: Police Officer Michael Gonzalez entered a trailer at § 87(2)(b) in the Bronx.	C . Unsubstantiated
D . Officers	Abuse: Officers seized § 87(2)(b)'s property.	D . Exonerated
E . POM Michael Gonzalez	Abuse: Police Officer Michael Gonzalez seized § 87(2)(b)'s property.	E . Unsubstantiated

Case Summary

On July 1, 2017, § 87(2)(b) filed this complaint with the CCRB via the Call Processing System.

In the early morning on July 1, 2017, § 87(2)(b) hosted a party at an empty lot located at § 87(2)(b). § 87(2)(b) had gotten permission to host the party from the lot's owner, § 87(2)(b). There is a trailer positioned at the rear of the lot that is used as an office. § 87(2)(b) hired two security guards and bought approximately \$6,000 worth of alcohol for the party. At approximately 1:16 a.m., the security guards kicked an unidentified male out of the party for being intoxicated and disruptive. Afterwards, several officers from the 47th Precinct, including Lt. Michael Kaiser, Sgt. Ariana Esteban, PO Michael Gonzalez, PO Matthew Escudero and PO Bjondin Skender, arrived at the location and shut the party down. Several officers, led by Lt. Kaiser, entered the lot (**Allegation A: Abuse of Authority – Premises entered, exonerated**). Once inside, the officers allegedly searched through several garbage bags that were sitting on the ground in the lot (**Allegation B: Abuse of Authority – Premises searched, exonerated**). PO Michael Gonzalez also entered a trailer positioned at the rear of the lot (**Allegation C: Abuse of Authority – Premises entered, unsubstantiated**). The officers seized the alcohol that § 87(2)(b) had purchased for the party (**Allegation D: Abuse of Authority – Property seized, exonerated**). The alcohol was later transferred to the Department of Sanitation, where it was disposed of. PO Gonzalez also seized a computer attached to security cameras that were installed around the lot (**Allegation E: Abuse of Authority – Property seized, unsubstantiated**). § 87(2)(b). No other arrests were made.

No video footage was found for this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Lieutenant Michael Kaiser entered § 87(2)(b).

Allegation (B) Abuse of Authority: Officers searched § 87(2)(b).

It is undisputed that § 87(2)(b) hosted a large party at the lot at § 87(2)(b). The lot is separated from the sidewalk by a chain-link fence, most of which can be seen through from the outside. There is a sliding gate that can be used to open the fence and allow access to the lot. § 87(2)(b) had hosted similar parties at the lot prior to this incident. She did not obtain a permit for the party. Over sixty people attended the gathering, with most of them inside of the lot and at least a dozen others on the sidewalk outside. § 87(2)(b) purchased a large quantity of alcohol to be consumed at the party. She also hired two security guards to maintain order. During the incident, Lt. Kaiser led several officers into the lot. The officers subsequently broke up the party and dispersed the people gathered at the lot. Lt. Kaiser was the highest-ranking officer present during the incident.

§ 87(2)(b) was interviewed at the CCRB on July 12, 2017 (See Board Review #01: § 87(2)(b)'s Statement). She stated that she placed garbage bags around the lot for partygoers to

dispose of their trash in. During the party, an unidentified male became intoxicated and was ejected by security guards. About five minutes after the male was removed, a large group of uniformed and plainclothes officers, including Lt. Kaiser, arrived at the location. The intoxicated male approached the officers and told them that “the one that threw the party” had a gun. The officers then opened the gate on the lot. Lt. Kaiser entered the lot and told the gathered people that the party was over. Several unidentified officers looked inside the garbage bags that had been placed around the lot.

§ 87(2)(b) provided a telephone statement on July 28, 2017 (See Board Review #02: § 87(2)(b) Statement). § 87(2)(b) is the owner of the lot at § 87(2)(b). She gave permission for § 87(2)(b) to host her party in the lot. She noted that the party was open to the public. § 87(2)(b) did not state whether the sliding gate on the lot was open or closed. § 87(2)(b) was initially not at the party. She arrived at the location at approximately the same time that officers entered. She did not witness what happened before the entry. § 87(2)(b) made no mention of the officers searching through garbage bags in the lot. § 87(2)(b) did not respond to efforts made to schedule her for a sworn statement (See Board Review #03: Contact Attempts).

Lt. Kaiser was interviewed at the CCRB on February 6, 2018 (See Board Review #04: Lt. Kaiser’s Statement). He stated that he responded to § 87(2)(b) after receiving a request for backup to deal with a large crowd. He did not recall receiving any other reports involving § 87(2)(b). He did not recall which officer made this request. Lt. Kaiser was familiar with the lot at § 87(2)(b), having broken up several illegal parties at the location in the past. When Lt. Kaiser arrived, he found several officers attempting to disperse a group of people standing on the sidewalk outside of the lot. Lt. Kaiser was able to see through the chain-link fence. He observed that at least 100 people were in the lot. He saw that a DJ booth and a makeshift bar had been set up. Alcohol was being distributed from the bar, but Lt. Kaiser could not tell if it was being sold or given out freely. From his previous visits to the lot, Lt. Kaiser knew that the lot did not possess a valid liquor license. He decided to shut down the party and disperse the civilians gathered inside. Lt. Kaiser and several other officers entered the lot and told the people inside to leave. He did not recall if the gate on the fence was open or closed when he entered. Lt. Kaiser did not recall any officers searching through garbage bags at the location. Lt. Kaiser did not recall receiving any reports that there might have been a firearm at the location.

PO Gonzalez was interviewed at the CCRB on November 21, 2017. PO Skender was interviewed at the CCRB on November 28, 2017. PO Escudero was interviewed by Patrol Borough Bronx Investigations on February 20, 2018, and at the CCRB on March 30, 2018 (See Board Review #05-07: MOS Statements). § 87(2)(g)

§ 87(2)(g) All of them stated that there were several other officers already present at the location when they arrived. They did not recall if the officers were inside of the lot or were standing outside. The lot’s gate was open at the time. The three officers did state that the civilians at the party were already leaving when they arrived. All three officers entered the lot together. All three officers denied that they searched any garbage bags at the lot. They denied seeing any other officers search garbage bags. PO Gonzalez and PO Skender did not recall any reports involving firearms at the party. PO Escudero stated that he received a radio report of either shots being fired or a male being armed in the vicinity of § 87(2)(b). He was not aware of any civilians carrying a gun or being suspected of having a gun at the party.

Sgt. Esteban was interviewed at the CCRB on January 25, 2018 (See Board Review #08: Sgt. Esteban's Statement). She also stated that she arrived at the location after several other officers. She did not recall why she entered the location, or if any other officers had gone in before her. She did not recall if the lot's gate was open or closed. She did not recall any officers searching a garbage bag. She also was unaware of any reports of an armed individual at the party.

To invoke the protection of the Fourth Amendment, a defendant must exhibit an actual expectation of privacy which society is prepared to recognize as reasonable. A warrantless search may only be challenged by one having a reasonable expectation of privacy in the place of the search. *People v. Mills*, A.D.2d 520 N.Y.S. 2d 387 (2nd Dept., 1990) (See Board Review #09: Legal Reference).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations A and B** be closed as **exonerated**.

Allegation (C) Abuse of Authority: Police Officer Michael Gonzalez entered a trailer at

§ 87(2)(b) **X.**

It is undisputed that PO Gonzalez entered a trailer inside of the lot at § 87(2)(b). The trailer was empty before he entered.

§ 87(2)(b) stated that § 87(2)(b) uses the trailer as an office that she leases out parking spaces from. There were no civilians inside of the trailer when the officers entered the lot and dispersed the party. A group of officers in plainclothes entered the trailer at that time. § 87(2)(b) was only able to recall what one of them, identified by the investigation as PO Gonzalez, looked like. She identified PO Gonzalez as the same officer who would later seize the computer from the trailer. § 87(2)(b) did later see § 87(2)(b) speak to an officer, but stated that this occurred after the group of officers entered the trailer. She did not mention any other officers entering the trailer besides the group of plainclothes officers.

§ 87(2)(b) did not mention the trailer during her telephone statement. She did not describe any specific areas that the police did or did not enter while they were on the lot.

PO Gonzalez stated that after he entered the lot, § 87(2)(b) approached him and identified herself as the person responsible for the party. PO Gonzalez attempted to speak to § 87(2)(b) in the open lot but they were unable to hear each other due to the noise of the crowd. § 87(2)(b) invited PO Gonzalez to speak to her privately in the trailer, where it was quieter. He was the only officer who entered the trailer. Inside, § 87(2)(b) explained that she was the owner of the lot. § 87(2)(b) did not object to PO Gonzalez's presence inside of the trailer at any time. She did not ask PO Gonzalez to leave the trailer during the incident. PO Gonzalez was the only officer to enter the trailer.

PO Escudero and PO Skender both stated that they observed § 87(2)(b) and PO Gonzalez enter the trailer to speak privately. They denied that any other officers went inside. They denied hearing what § 87(2)(b) and PO Gonzalez said to each other either outside of or inside of the trailer. PO Skender did not recall if § 87(2)(b) invited PO Gonzalez inside. PO Escudero stated that he saw § 87(2)(b) point towards the trailer and waved PO Gonzalez towards it. He interpreted this to be § 87(2)(b) inviting PO Gonzalez into the trailer.

Neither Lt. Kaiser nor Sgt. Esteban recalled the presence of a trailer on the lot. Lt. Kaiser did note that there was a "booth" at the lot. He did not recall if any officers, including PO Gonzalez, went inside of the booth during the incident. Lt. Kaiser later stated that a DVR was recovered during the incident. He believed that it was obtained from inside of the booth, but was not certain of this. He did not specifically recall seeing any officers remove the DVR from inside of the booth. Sgt. Esteban did not recall any electronics being recovered during the incident, or where they might have been recovered from.

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]
[REDACTED] Therefore, it is recommended that **Allegation C** be closed as **unsubstantiated**.

Allegation (D) Abuse of Authority: Officers seized § 87(2)(b)'s property.

It is undisputed that § 87(2)(b) served alcohol at the party despite not possessing a liquor license. § 87(2)(b) the owner of the lot, was arrested and charged with § 87(2)(b)

Officers seized a large quantity of alcohol from the party.

§ 87(2)(b) stated that after the police searched the lot, they removed approximately \$6,000 in alcohol that she had purchased for the party. She did not know what happened to the alcohol after it was seized. § 87(2)(b) did not mention the police seizing any property, including alcohol, during the incident.

Lt. Kaiser, PO Gonzalez and PO Skender all stated that the alcohol was seized as evidence of the ABC Law violations. They stated that after the seizure was documented via photographs, it was handed over to the Sanitation Department for destruction. PO Gonzalez identified himself as the officer who took the photographs of the alcohol. All three officers stated that it is standard procedure to have the Sanitation Department destroy seized alcohol. Sgt. Esteban and PO Skender did not recall if any alcohol was seized during the incident.

PO Gonzalez prepared a property voucher for § 87(2)(b) arrest. The voucher states that twelve photographs of § 87(2)(b) were entered as evidence for § 87(2)(b) arrest (See Board Review #10: Property Vouchers).

NYPD Patrol Guide section 218-32 states that when officers seize alcohol as evidence for violations of the ABC Laws, the alcohol must be photographed at the time and place that the violations occurred. It is then to be delivered to the stationhouse of the local precinct. Seized alcohol may be destroyed provided that it was documented via photograph (See Board Review #11: Legal Reference).

§ 87(2)(g)

. Therefore, it is recommended that **Allegation D** be closed as **exonerated**.

Allegation (E) Abuse of Authority: Police Officer Michael Gonzalez seized § 87(2)(b)'s property.

It is undisputed that the lot at § 87(2)(b) is monitored by security cameras. The cameras are connected to a computer. PO Gonzalez seized the computer as arrest evidence.

§ 87(2)(b) stated that PO Gonzalez seized the computer from inside of the trailer. In addition to the computer, PO Gonzalez also seized three cameras that were mounted around the lot. § 87(2)(b) made no mention of the cameras or the computer during her telephone statement.

PO Gonzalez confirmed that he seized the computer during the incident and vouchered it as arrest evidence. He took the computer because he believed that it contained evidence to document § 87(2)(b)'s illegal party. He did not recall where he retrieved the computer from. He denied that any physical cameras were seized during the incident.

Lt. Kaiser stated that an officer retrieved a DVR from the location during the incident. He did not recall which officer seized it. He believed that it was found in a booth located on the lot, but was not certain of this. The DVR was vouchered as arrest evidence because the footage on it would document the illegal gathering that § 87(2)(b) was hosting.

PO Escudero initially made no mention of PO Gonzalez seizing a computer or camera. When specifically asked if a computer was seized, PO Escudero recalled that he did see PO Gonzalez carry a box-shaped piece of electronics out of the lot at some point during the incident. He did not know what the box was, and did not know if it was a computer. He did not know where PO Gonzalez obtained the box or why he removed it from the lot.

Neither PO Skender nor Sgt. Esteban recalled any computers or cameras being seized during the incident.

Property vouchers prepared for § 87(2)(b) arrest state that a computer that was linked to a security system was seized as arrest evidence. The computer was retrieved by PO Gonzalez. The seizure was approved by Lt. Kaiser. The vouchers did not list any cameras being seized (See Board Review #10: Property Voucher).

NYPD Legal Bureau Bulletin Vol. 46, No. 2 states that when an officer has probable cause to believe that a recording contains evidence of a crime, the recording may only be retrieved with the permission of the recording's owner or through a search warrant. If an officer has reason to believe that the recording may be deleted, he or she may seize the device that the recording is kept on and hold it while a search warrant is obtained. Officers may not look into the seized device or review the recording before the search warrant is obtained (See Board Review #12: Legal Reference).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

. Therefore, it is recommended that **Allegation E** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one CCRB complaint and has been named a victim in two allegations.
 - § 87(2)(b)
- This is the first CCRB complaint to which § 87(2)(b) has been a party (See Board Review #13: Civilian CCRB Histories).
- Lt. Kaiser has been a member of the service for twelve years and has been a subject in two previous CCRB complaints and two previous allegations, none of which was substantiated. § 87(2)(g)
- PO Gonzalez has been a member of the service for eleven years and has been a subject in sixteen previous CCRB complaints and thirty-six previous allegations, none of which was substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- As of April 20, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (See Board Review #14: Notice of Claim).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer:

Title/Signature

Print

Date